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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

ALEC BLADE,

Plaintiff,

-against-

GAMESTOP INC., GAMESTOP OF NEW YORK, RHONDA WATSON, and JULIAN ESPINOZA,

Defendants.

Docket No. 1:26-cv-06563

JURY TRIAL DEMANDED

COMPLAINT

Plaintiff Alec Blade ("Plaintiff"), by and through his attorneys, Robert Wisniewski P.C., as and for his Complaint against Defendants GameStop Inc., and GameStop of New York (collectively "Corporate Defendants"), Rhonda Watson ("Watson"), and Julian Espinoza ("Espinoza") (collectively "Individual Defendants"), states as follows:

NATURE OF THE ACTION

1. Plaintiff was discriminated against in the terms and conditions of his employment by the Corporate Defendants on the basis of sex and sexual orientation. In addition, Plaintiff was terminated by the Corporate Defendants in retaliation for making protected complaints against Corporate Defendants and its employees.

2. Plaintiff brings this action against the Corporate Defendants for discrimination and a hostile work environment based on sex, and retaliation, including but not limited to, termination of

Plaintiff's employment for his opposition to said discrimination and hostile work environment in violation of Title VII of the Civil Rights Act of 1964 ("Title VII").

3. Plaintiff also asserts claims against all Defendants under the New York Executive Law § 296 ("NYSHRL") and the New York City Charter and Administrative Code § 8-107 ("NYCHRL") for discrimination and hostile work environment based on sex and for retaliation, including but not limited to, termination of Plaintiff's employment for his opposition to said discrimination and hostile work environment.

PARTIES, JURISDICTION, AND VENUE

4. At all relevant times, GameStop Inc. is and has been a foreign business corporation with principal address located at 625 Westport Parkway, Grapevine, Texas 76051, and is authorized to do business in the State of New York.

5. At all relevant times, GameStop of New York is and has been a foreign business corporation with principal address located at 16 Madison Square West, 12th Floor, New York, NY 10010.

6. At all times herein, Corporate Defendants transacted and still transacts substantial business and derived and still derives substantial revenue from services rendered in the State of New York.

7. At all relevant times, Corporate Defendants employed five hundred (500) or more employees, and thus, was Plaintiff's "employer" within the meaning of that term in Title VII, NYSHRL, and NYCHRL.

8. Individual Defendant is an officer, shareholder, manager, and/or employee of Corporate Defendants.

9. At all relevant times, Individual Defendant had supervisory authority over employees, including Plaintiff, with respect to hiring, disciplining, scheduling, evaluating, promoting, and terminating employment.

10. This Court has subject-matter jurisdiction over Plaintiff's claims arising under Title VII pursuant to 28 U.S.C. §§ 1331 because this action arises under the laws of the United States.

11. This Court has supplemental jurisdiction over Plaintiff's claims arising under the NYSHRL and NYCHRL pursuant to 28 U.S.C. § 1367(a), because those claims are so related to

Plaintiff's federal claims that they form part of the same case or controversy under Article III of the United States Constitution.

12. This Court has personal jurisdiction over the Corporate Defendants pursuant to CPLR 302(a), New York's long arm statute.

13. This Court is a proper venue for this action, pursuant to, among other grounds, 28 U.S.C. §1391(b), because substantial events relating to the claims herein occurred in this district.

PREREQUISITES

14. Plaintiff has filed charges of discrimination against the Defendants with the Equal Employment Opportunity Commission ("EEOC") and has received a Notice of the Right to Sue (the "Right to Sue Letter").

TRIAL BY JURY

15. Plaintiff demands a trial by jury of all issues so triable in this action.

FIRST CLAIM FOR RELIEF

Discrimination And Hostile Work Environment Under Title VII Against the Corporate Defendants

16. Plaintiff repeats and realleges each and every allegation previously set forth.

17. When employed by the Corporate Defendants, Plaintiff was an employee within the meaning of Section 2000e(f) of Title VII.

18. The Corporate Defendants were an employer within the meaning of Section 2000(e)(b) of Title VII.

19. Section 2000e-2(a) of Title VII makes it unlawful for an employer "to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment because of such individual's ... sex."

20. The Corporate Defendants, through its respective owners, directors, officers, managers, and employees, engaged in discrimination based on sex sufficient to alter the terms and conditions of Plaintiff's employment.

21. The Corporate Defendants discriminated against Plaintiff by treating him differently and less favorably than its straight employees based on Plaintiff's sex and sexual orientation by

subjecting him, among other things, to a hostile work environment, disparate working conditions, and discriminatory termination of employment solely because of his sex and sexual orientation in violation of Section 2000e-2(a) of Title VII.

22. The Corporate Defendants also unlawfully discriminated against Plaintiff on the basis of his sex and sexual orientation by fostering, condoning, accepting, ratifying, and/or otherwise failing to prevent or to remedy a hostile work environment.

23. By virtue of the acts complained of herein, the hostile work environment at Corporate Defendants was sufficiently severe and pervasive to alter the terms and conditions of Plaintiff's employment and create a subjectively and objectively abusive/discriminatory work environment.

24. The Corporate Defendants are liable for the discrimination and hostile work environment against Plaintiff because it was created and fostered by its owners, directors, officers, managers, and/or because the Corporate Defendants did not take adequate steps to prevent or address instances of said discrimination and hostile work environment.

25. As a direct and proximate result of the discrimination and hostile work environment complained of herein, Plaintiff suffered and continues to suffer damages, including but not limited to lost income, mental anguish, and pain and suffering, and interest thereon.

26. Plaintiff is also entitled to an award of punitive damages, attorney's fees, and costs because the Corporate Defendants' unlawful and discriminatory actions constitute malicious, willful, and wanton violations of Title VII.

SECOND CLAIM FOR RELIEF

Retaliation Under Title VII Against the Corporate Defendants

27. Plaintiff repeats and realleges each and every allegation previously set forth.

28. The Corporate Defendants retaliated against Plaintiff by, inter alia, (i) subjecting Plaintiff to materially adverse actions that would deter a reasonable employee from engaging in protected activity for his opposition to, and complaint against, the Corporate Defendants' discriminatory practices; (ii) failing to stop and prevent the discriminatory conduct towards Plaintiff by employees of the Corporate Defendants; and (iii) terminating Plaintiff's employment.

29. As a direct and proximate result of Corporate Defendants' retaliatory conduct, Plaintiff suffered, and continues to suffer, damages including but not limited to lost income, mental anguish, and pain and suffering, and interest thereon.

30. Plaintiff is also entitled to an award of punitive damages, attorney's fees, and costs because the Corporate Defendants' unlawful and retaliatory actions constitute malicious, willful, and wanton violations of Title VII.

THIRD CLAIM FOR RELIEF

Discrimination and Hostile Work Environment Under The New York State Human Rights Law Against All Defendants

31. Plaintiff repeats and realleges each and every allegation previously set forth.

32. NYSHRL § 296(1) provides that, "It shall be an unlawful discriminatory practice: (a) For an employer ..., because of an individual's age, sex, race, color, [or] national origin ... to refuse to hire or employ or to bar or to discharge from employment such person or to discriminate against such person in compensation or in terms, conditions or privileges of employment."

33. Defendants discriminated against Plaintiff by treating her differently and less favorably than their straight, male employees based on his sex and sexual orientation by subjecting her, among other things, to disparate working conditions and compensation, and discriminatory termination of his employment solely because of sex in violation of Section 296(1) of NYSHRL.

34. Defendants also unlawfully discriminated against Plaintiff on the basis of his sex by fostering, condoning, accepting, ratifying and/or otherwise failing to prevent or to remedy a hostile work environment.

35. By virtue of the acts complained of herein, the discrimination and hostile work environment at the Corporate Defendants was sufficiently severe and pervasive to alter the terms and conditions of Plaintiff's employment and create a subjectively and objectively abusive/discriminatory work environment.

36. Said discrimination and hostile work environment occurred with malice and reckless disregard of Plaintiff's rights.

37. Section 296(6) provides that it is "an unlawful discriminatory practice for any person to aid, abet, incite, compel or coerce the doing of any of the acts forbidden under this chapter, or to attempt to do so."

38. Defendants engaged in unlawful discriminatory practices in violation of the NYSHRL § 296 (6) by aiding, abetting, inciting, compelling, and coercing the above discriminatory conduct.

39. As a result of Defendants' discrimination and hostile work environment, Plaintiff suffered, and continues to suffer, damages including but not limited to lost income, mental anguish, and pain and suffering.

40. Plaintiff is also entitled to an award of punitive damages, attorney's fees, and costs because the Corporate Defendants' unlawful and discriminatory actions constitute malicious, willful and wanton violations of Section 296 of the NYSHRL.

FOURTH CLAIM FOR RELIEF

Discrimination and Hostile Work Environment Under The New York City Human Rights Law Against All Defendants

41. Plaintiff repeats and realleges each and every allegation previously set forth.

42. The New York Administrative Code § 8-107(1) provides that, "It shall be an unlawful discriminatory practice: (a) For an employer or an employee or agent thereof, because of the actual or perceived age, sex, race, color, [or] national origin... to refuse to hire or employ or to bar or to discharge from employment such person or to discriminate against such person in compensation or in terms, conditions or privileges of employment."

43. Defendants discriminated against Plaintiff by treating him differently and less favorably than their straight, male employees based on his sex and sexual orientation by subjecting him, among other things, to disparate working conditions, discriminatory disciplinary procedures, and discriminatory termination of his employment solely because of her sex in violation of New York Administrative Code § 8-107(1).

44. Defendants also unlawfully discriminated against Plaintiff on the basis of his sex by fostering, condoning, accepting, ratifying, and/or otherwise failing to prevent or to remedy a hostile work environment.

45. By virtue of the acts complained of herein, the discrimination and hostile work environment at the Corporate Defendants was sufficiently severe and pervasive to alter the terms and conditions of Plaintiff's employment and create a subjectively and objectively abusive/discriminatory work environment.

46. Said discrimination and hostile work environment occurred with malice and reckless disregard of Plaintiff's rights.

47. The New York Administrative Code § 8-107(6) provides that, "It shall be an unlawful discriminatory practice: For any person to aid, abet, incite, compel, or coerce the doing of any of the acts forbidden under this chapter, or attempt to do so."

48. Defendants engaged and continue to engage in an unlawful discriminatory practice in violation of the New York City Administrative Code § 8-107(6) by aiding, abetting, inciting, compelling, and coercing the above discriminatory conduct of its employee.

49. As a result of the Defendants' discrimination and hostile work environment, Plaintiff suffered, and continues to suffer, damages including but not limited to lost income, mental anguish, and pain and suffering.

50. Plaintiff is also entitled to an award of punitive damages, attorney's fees, and costs because the Defendants' unlawful and discriminatory actions constitute malicious, willful and wanton violations of Section 8-107.

FIFTH CLAIM FOR RELIEF

Retaliation Under the New York State Human Rights Law Against All Defendants

51. Plaintiff repeats and realleges each and every allegation previously set forth.

52. Defendants retaliated against Plaintiff by, inter alia, (i) subjecting Plaintiff to materially adverse actions that would deter a reasonable employee from engaging in protected activity for her opposition to, and complaint against, the Defendants' discriminatory practices; (ii) failing to stop and prevent the discriminatory conduct towards Plaintiff by Defendants; and (iii) terminating Plaintiff's employment.

53. Defendants engaged and continue to engage in unlawful discriminatory practices in violation of the NYHRL § 296 (6) by aiding, abetting, inciting, compelling, and coercing the above retaliatory conduct.

54. As a result of the retaliatory conduct complained of herein, Plaintiff suffered and continues to suffer damages, including but not limited to lost income, mental anguish, and pain and suffering, and interest thereon.

55. Plaintiff is also entitled to an award of punitive damages, attorney's fees, and costs because Defendants' unlawful and retaliatory actions constitute malicious, willful, and wanton violations of New York Human Rights Law.

SIXTH CLAIM FOR RELIEF

Retaliation Under the New York City Human Rights Law Against All Defendants

56. Plaintiff repeats and realleges each and every allegation previously set forth.

57. Defendants retaliated against Plaintiff by, inter alia, (i) subjecting Plaintiff to materially adverse actions that would deter a reasonable employee from engaging in protected activity for his opposition to, and complaint against, the Defendants' discriminatory practices; (ii) failing to stop and prevent the discriminatory conduct towards Plaintiff by Defendants; and (iii) terminating Plaintiff's employment.

58. Defendants engaged in unlawful discriminatory practices in violation of the NYCHRL § 8-107(6) by aiding, abetting, inciting, compelling, and coercing the above retaliatory conduct.

59. As a result of the retaliatory conduct complained of herein, Plaintiff suffered, and continues to suffer, damages including but not limited to lost income, mental anguish, pain and suffering, and interest thereon.

60. Plaintiff is also entitled to an award of punitive damages, attorney's fees, and costs because the Corporate Defendants' unlawful and retaliatory actions constitute malicious, willful, and wanton violations of NYCHRL.

PRAYER FOR RELIEF

WHEREFORE, it is respectfully requested that the Court assume jurisdiction herein and thereafter Plaintiff demands a trial by jury and judgment against all Defendants as follows:

A. A declaratory judgment that the actions, conduct, and practices of Defendants complained of herein violate the laws of the United States and the State and City of New York;

B. An award of damages in an amount to be determined at trial, plus pre-judgment interest, to compensate Plaintiff for all monetary and/or economic damages;

C. An award of damages in an amount to be determined at trial, plus pre-judgment interest, to compensate Plaintiff for all non-monetary and/or compensatory damages, including, but not limited to, compensation for their mental anguish and emotional distress, humiliation, embarrassment, stress and anxiety, loss of self-esteem, self-confidence and personal dignity, and emotional pain and suffering and any other physical and mental injuries;

D. An award of punitive damages;

E. An award of liquidated damages;

F. An award of costs and disbursements that Plaintiff has incurred in this action, as well as Plaintiff's attorneys' fees to the fullest extent permitted by law; and

G. Together with such other and further relief that the Court deems just and proper.

Dated: New York, New York, October 8, 2026

Respectfully submitted,

By: /s/ Robert Wisniewski
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